

		warranty could be breached after delivery,” which “is a change from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (<i>Id.</i> at 1309.) Furthermore, in <i>Krieger v. Nick Alexander Imports, Inc.</i> (1991) 234 Cal.App.3d 205, 217, the court noted that a “promise to repair defects that occur during a future period is the very definition of express warranty of future performance....” (See also <i>Jones v. Credit Auto Center, Inc.</i> (2015) 237 Cal.App.4th Supp. 1, 9 (“By providing a duration period for the implied warranty of merchantability, [the statute] contemplates that a breach may occur either when the goods are first purchased, or afterwards, when a latent defect is discovered by the buyer.”).) Here, as noted above, Plaintiff has added more specific allegations in the Second Amended Complaint to support the tolling of the statute of limitations. (SAC, ¶¶ 15, 16.) Therefore, the demurrer is also overruled to this cause of action. Plaintiffs shall give notice.
11.	2025-1489215 Mosley vs. Givargis	The court is inclined to grant defendant Ronald Givargis’ unopposed motion to vacate the default entered against him in this action if he presents his proposed answer or pleading to the court. The court will hear from Defendant and plaintiff Loyd Mosley’s counsel. The law favors a trial on the merits, and doubts in applying Code of Civil Procedure section 473 are resolved in favor of the party seeking relief from default. <i>Iott v. Franklin</i> (1988) 206 Cal.App.3d 521, 526. If a party moves promptly for default relief, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), only <i>slight</i> evidence will justify an order granting such relief. <i>Ibid.</i> For this reason, “a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.” <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 696 (citations omitted). The most fundamental of those principles is that affirmed in <i>Au-Yang v. Barton</i> (1999) 21 Cal.4th 958, 963, 90 Cal.Rptr.2d 227, 987 P.2d 697: “[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary.” (<i>Ibid.</i>, Citing among other cases, <i>Weitz v.</i>

		<i>Yankosky</i> (1966) 63 Cal.2d 849, 855, 48 Cal.Rptr. 620, 409 P.2d 700 (<i>Weitz</i>).) <i>Id.</i> Code of Civil Procedure section 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” The procedural requirements for relief from default are: (1) timeliness; (2) submission of proposed pleadings; and (3) proper ground. Code Civ. Proc. § 473(b); <i>Cruz v. Fagor America, Inc.</i> (2006) 146 Cal.App.4th 488, 495. The proposed pleading may be presented at the hearing. <i>Carmel, Ltd. v. Tavoussi</i> (2009) 175 Cal.App.4th 393, 403. <i>See also Dollase v. Wanu Water, Inc.</i> (2023) 93 Cal.App.5th 1315, 1326 (finding attempt to file and subsequent courtesy copy to court sufficient). Here, Plaintiff apparently attempted to file a responsive pleading. [ROA #34.]
12.	2024-1381501 Cisneros vs. Lu	The general and special demurrer by Cross-Defendant California Escrow Group, Inc. (“Escrow Company”) to the sixth, seventh, and eighth causes of action alleged against Escrow Company in the Second Amended Cross-Complaint (“SACC”) filed by Cross-Complainants Ying Lu and Nestwise Group (collectively, “Cross-Complainants”) and Escrow Company’s unopposed motion to strike portions of the SACC are moot. Escrow Company challenges the SACC filed on November 13, 2025. On April 23, 2026, Cross-Complainants filed a Third Amended Cross-Complaint. (ROA NO. 201.) Thus, Cross-Complainants’ TACC supersedes the SACC, and the latter “ceases to have any effect either as a pleading or as a basis for judgment.” (<i>State Compensation Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1130-31.) Accordingly, the demurrer is overruled as moot and the unopposed motion to strike is denied as moot. (<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477.) Cross-Complainants shall give notice.